

Testimony of Jean Handley
Dauphin County Resident
Before the Pennsylvania House Committee on State Government
Hearing on Congressional Redistricting
October 13, 2021

Good afternoon, Chairman Grove, Chairman Conklin, and members of the House State Government Committee. Thank you for this opportunity to appear before you today to discuss the upcoming congressional redistricting in Pennsylvania.

My name is Jean Handley and although I am the Dauphin County Coordinator for Fair Districts PA, I appear before you today, not in that capacity, but rather as a resident of Dauphin County and citizen of this Commonwealth.

Some of what I say today may sound familiar as it was part of my FDPA testimony at the Stakeholder hearing on July 22, but I believe it bears repeating.

My focus today is on three areas to consider when constructing the new Congressional districts.:

- 1) lack of choice or competitiveness in elections
- 2) divisions of counties
- 3) division of school districts

Election Choice and Competitiveness

When speaking to groups and individuals over the last 4 + years, I have repeatedly heard statements like “Why bother to vote when my vote doesn’t matter?”, “My candidate has “a snowball’s chance of winning so why even vote!” or from Independents, “I can’t vote in the primaries. There is only one candidate running so they already won this general election in their primary. My vote is meaningless”. Their frustration and disillusionment are palpable. Democracy is based on as many eligible voters as possible lending their voice to the conversation.

I cite the PA Congressional general elections from 2012 through 2020 as reasons why many voters hold these beliefs. **Note:** A win margin of greater than 10% is

widely used as a standard to determine the competitiveness of an election.
Greater than 10% = safe district and considered non-competitive.

Of the 18 Congressional general elections held each cycle between 2012 and 2018:

2012 -17 won by greater than 10%

2014 -2 unopposed, 16 won by greater than 10%,

2016 -3 unopposed, 13 won by greater than 10%

2018 -1 unopposed, 12 won by greater than 10%

2020 -14 won by greater than 10%

This equates to 17 uncompetitive elections in 2012, 18 in 2014, 16 in 2016, 13 in 2018 and 14 in 2020. Candidates from both major parties are represented in these figures. I realize that rural areas tend to lean more Republican and urban areas more Democratic and thus some 'self-sorting' occurs. However, with voter registration in PA about equal among the two major parties with a slight advantage to Democrats, the fact that about 10% of registered voters are Independents, there are many areas of moderate or swing voters, and there are pockets of red in blue areas and pockets of blue in red areas in the Commonwealth, there should be a greater effort to construct more competitive districts whenever possible. To do otherwise continues to marginalize hundreds of thousands of voters, eliminates their voices from the conversation and perpetuates their frustration with and distrust of our legislators and legislative institutions.

Unnecessary Division of Counties

In Congressional redistricting, all states must comply with Federal requirements for districts of equal population and protections for racial minorities. However, the General Assembly has not enacted constitutional or statutory standards to prevent unfair partisan gerrymandering of congressional districts of the kind we believe has occurred far too often in the Commonwealth.

I use Dauphin County and the 2011 Congressional map as an example. Dauphin County with a population of 268,100 in the 2010 census was split into 3

congressional districts – 4, 11 and 15. District 15 stretched from the far south west corner of Dauphin County to the New Jersey border near Easton. It included parts of Berks, Dauphin, Lebanon and Northampton Counties and all of Lehigh County. District 11 stretched from the western border of Cumberland County near Shippensburg to the northern border of Wyoming County to include parts of 6 counties and 3 more entire counties. District 4 included Adams and York counties, the eastern part of Cumberland County and crossed the Susquehanna River to include parts of Harrisburg City and Susquehanna Township in Dauphin County. Susquehanna Township was divided with Ward 1 and part of Ward 3 in District 4 and the remainder of the township in District 11. Harrisburg City was divided with Ward 1 in District 11 and the remainder of Harrisburg in District 4. West Hanover Township was split between Districts 11 and 15. These divisions caused voter confusion and extra taxpayer expense and split what some would call ‘communities of interest’.

In its 2018 decision, the Pennsylvania Supreme Court applied essentially the same standards that our state Constitution requires for legislative redistricting. The Court said congressional districts should be:

“... composed of compact and contiguous territory; as nearly equal in population as practicable; and which do not divide any county, city, incorporated town, borough, township or ward, except where necessary to ensure equality of population.”

Based on census data, it has been determined that each PA Congressional district should have a population of approximately 764,865.

Dauphin County has a population of 286, 401. Based on population, it is possible to keep the county whole within one Congressional district. It should be combined with other counties or areas with similar demographics, concerns and issues and, if at all possible, should remain whole. The current District 10, as an example, has a mix of rural, suburban and urban populations; similar numbers of registered voters of both major parties, independents and other non-affiliated categories; shared commerce and similar issues and concerns. It was a district with one of the very few ‘competitive races’ in both 2018 and 2020 with 51.3% R to 48.7% D and 53.3% R to 46.7% D respectively.

The new district should also not include parts of **multiple** counties such as was done in 2011. However, if a division is considered **absolutely** necessary, it should not be split more than once, it should **not** be done to favor a party or candidate and an attempt to achieve a reasonably competitive district should be made.

Division of School Districts

When the 2011 Congressional districts were drawn, 5 of the 12 Dauphin County school districts were divided between two Congressmen. (See Table 1). Avoiding division of school districts in Congressional districts should be an important consideration. In many cases, the residents have common interests, concerns and values. In addition, having multiple legislators representing a school district hinders the ability to have their specific concerns and needs heard and addressed.

In Summary

The districts you draw will impact legislative agenda, policy and Pennsylvania politics, thus the constituents of this Commonwealth, for at least the next decade. I ask that you take into serious consideration whenever possible the following:

- **Election choice and competitiveness**
- **Division of counties**
- **Division of school districts**

It is also crucial that the public be given ample time to review the preliminary map and adequate opportunity for comment so that adjustments can be made in completion of the final map.

The opportunity to make an historic, positive impact on PA Congressional redistricting and restoration of the public trust and confidence rests in your hands. This must be a bi-partisan effort with input from our Republican **and** Democrat legislators. I commend your efforts at transparency and public hearings thus far. However, it is not was is said, but the end result that will determine your success. Citizens are calling for transparency, accountability, meaningful public input and well defined, sensible map-drawing criteria. They are counting on you.

Thank you again for the opportunity to speak with you this afternoon.

TABLE 1

DAUPHIN COUNTY SCHOOL DISTRICTS

2011 MAPS

<u>SCHOOL DISTRICT</u>	<u>HOUSE DISTRICT</u>	<u>SENATE DISTRICT</u>	<u>CONGRESSIONAL DISTRICT</u>
CENTRAL DAUPHIN	103-KIM (D) 104-HELM (R) 105-MARSICO (R) 106-MEHAFFIE (R)	15-DISANTO (R) 48-FOLMER (R)	11-BARLETTA (R) 15-DENT (R)
DERRY TOWNSHIP	106-MEHAFFIE (R)	15-DISANTO (R)	15-DENT (R)
HALIFAX AREA	104-HELM (R)	15-DISANTO (R)	11-BARLETTA (R)
HARRISBURG CITY	103-KIM (D)	15-DISANTO (R)	4-PERRY (R) 11-BARLETTA (R)
LOWER DAUPHIN	98-HICKERNELL (R) 104-HELM (R) 105-MARSICO (R) 106-MEHAFFIE (R)	15-DISANTO (R) 48-FOLMER (R)	15-DENT (R)
MIDDLETOWN AREA	106-MEHAFFIE (R)	48-FOLMER (R)	11-BARLETTA (R) 15-DENT (R)
MILLERSBURG AREA	104-HELM (R)	15-DISANTO (R)	11-BARLETTA (R)
STEELTON-HIGHSPIRE	103-KIM (D)	48-FOLMER (R)	11-BARLETTA (R)
SUSQUEHANNA	104-HELM (R)	15-DISANTO (R)	4-PERRY (R) 11-BARLETTA (R)
SUSQUENITA	104-HELM (R)	15-DISANTO (R)	11-BARLETTA (R)
UPPER DAUPHIN	104-HELM (R) 125-TOBASH (R)	15-DISANTO (R)	11-BARLETTA (R)
WILLIAMS VALLEY	104-HELM (R) 125-TOBASH (R)	15-DISANTO (R)	11-BARLETTA (R) 17-CARTWRIGHT (D)